

March 1, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11865
(SEVENTH REVISION)

EXPIRATION DATE: February 28, 2011

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: ACCU CHEM Conversion, Incorporated
El Monte, California
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes tank cars, containing hazardous materials identified in paragraph 6, to remain standing with unloading connections attached when no product is being transferred, provided that a minimal level of monitoring, as specified in this special permit is maintained. This special permit provides no relief from any regulations other than as specifically stated.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a), 172.302(c) in that marking the special permit number on the shipping paper and tank car is waived; and 174.67(i) and (j) in that alternate attendance is authorized.
5. BASIS: This special permit is based on ACCU CHEM Conversion, Incorporated's application dated February 20, 2007, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Alcoholic beverages	3	UN3065	II/III
Corrosive liquids, n.o.s. (n-methylsodium di-thiocarbamate)	8	UN1760	I/II/II
Corrosive liquids, acidic, inorganic, n.o.s. (Phosphoric acid mixtures)	8	UN3264	I/II/III
Hydrochloric acid	8	UN1789	II/III
Hydrogen Peroxide, aqueous solutions with more than 40 percent but not more than 60 percent hydrogen peroxide (stabilized as necessary)	5.1	UN2014	II
Nitric Acid other than red fuming, with not more than 70 percent nitric acid	8	UN2031	II
Sodium hydroxide, solution	8	UN1824	II
Sulfuric acid with more than 51 percent acid	8	UN1830	II

7. SAFETY CONTROL MEASURES:

- a. Packagings prescribed are DOT specification tank cars authorized for the material specified in paragraph 6 of this special permit.
- b. Any manually operated switch, under the proprietary control of the special permit holder, providing access to the track on which the equipment is located must be lined

against movement to that track and locked with an effective locking device operable only by a representative of the facility.

c. The facility operator must install a bi-directional derail in an effective location (at least 50 feet when possible) from the end of the equipment to be protected by the caution sign. The person performing the unloading operation must lock the device in the derailing position with an effective locking device operable only by facility representatives.

d. The facility operator must designate an employee responsible for on-site monitoring of the transfer facility in the absence of the unloader. The designated employee must be made familiar with the nature and properties of the product contained in the tank car, procedures to be followed in the event of an emergency; and, in the event of an emergency, have the ability and authority to take responsive actions.

e. When a signaling system is used (including a monitoring system or a sensing device), the system must be capable of alerting the designated employee in the event of an emergency and providing immediate notification of any monitoring system malfunction. If the monitoring system does not have self-monitoring capability, the designated employee must check the monitoring system hourly for proper operation. (For recommendations on the selection, installation and maintenance of signaling systems see NFPA 72 - Installation, Maintenance and Use of Protective Signaling Systems.)

f. In the absence of the unloader:

- (1) the tank car and facility shutoff valves must be secured in the closed position;
- (2) no product may be transferred; and
- (3) the requirements of § 174.67(a)(2) and (3) apply.

8. SPECIAL PROVISIONS:

a. The facility operator must have written safety procedures on file at each location that uses this special permit. The facility operator must instruct each employee performing any function under this special permit on the

contents of these procedures and ensure compliance with them. The written procedures must contain at least the following:

- (1) A physical description of the facility including the address and hours of operation.
- (2) A drawing of the transfer facility showing natural and manmade barriers, locations of protective equipment (i.e. derail and caution sign), locations of emergency equipment and locations of signaling equipment.
- (3) Procedures for monitoring the transfer facility [see paragraphs 7(a) and (b)].
- (4) Information on the contents of the tank car including:
 - (i) chemical or common name of the product
 - (ii) health and physical hazards involved in handling the product
 - (iii) emergency and first aid procedures
- (5) Procedures for securing the transfer facility and protective equipment including derail, switch locks, tank car brakes, caution sign and wheel blocks.
- (6) Equipment available for employee safety and procedures for using the equipment.
- (7) Procedures and limitations for movement of tank cars in the vicinity of the transfer facility.
- (8) Testing and maintenance of system components including signaling systems.
- (9) Training requirements for designated employees responsible for monitoring the transfer facility.
- (10) Procedural steps in the event of an emergency, including names and phone numbers of key personnel and public agencies to contact.
- (11) Procedures for reviewing incidents to determine whether the written procedures require revision or modification to prevent future occurrences and

amending those procedures when the review necessitates changes.

- b. The facility operator must establish and maintain liaison with fire, police and other appropriate public officials to learn the responsibilities and resources of each governmental agency that may be called upon to respond to an emergency involving the tank car and transfer facility and acquaint the officials with the facility's capabilities and procedures in the event of an emergency.
 - c. The holders of this special permit must ensure that personnel, properly trained in accordance with Federal regulations, are present and available during switching activities.
 - d. The marking requirements of §§ 172.203(a) and 172.302(c) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
10. MODAL REQUIREMENTS: None as a requirement of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training requirements of §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired

or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.
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